

CHAPTER 16.

An Act to amend the Pauper Children (Ireland) Act, 1898. [22nd July 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. In the Pauper Children (Ireland) Act, 1898,—

- (a) In the case of a legitimate child, the expression "orphan child" shall mean a child, both of whose parents are dead, or one of whose parents is dead, the other being under sentence of penal servitude, or suffering permanently from mental disease, or being permanently bedridden or disabled and an inmate of a workhouse, or being out of Ireland; and the expression "deserted child" shall mean a child deserted by both parents, or deserted by one parent, the other being dead, or under sentence of penal servitude, or suffering permanently from mental disease, or being permanently bedridden or disabled and an inmate of a workhouse, or being out of Ireland; or a child, one of whose parents is under sentence of penal servitude, or suffering permanently from mental disease, or is permanently bedridden or disabled and an inmate of a workhouse, or is out of Ireland, the other parent being likewise in one of these conditions; and
- (b) In the case of an illegitimate child, the expression "orphan child" shall mean a child whose mother is dead; and the expression "deserted child" shall mean a child deserted by its mother, or whose mother is under sentence of penal servitude, or suffering permanently from mental disease, or is permanently bedridden or disabled and an inmate of a workhouse, or is out of Ireland.

Definitions of orphan and deserted child. 61 & 62 Vict. c. 30.

2. This Act may be cited as the Pauper Children (Ireland) Act, 1902; and the Pauper Children (Ireland) Act, 1898, and this Act may be cited together as the Pauper Children (Ireland) Acts, 1898 and 1902.

Short title and citation.

CHAPTER 17.

An Act to secure the better training of Midwives, and to regulate their practice. [31st July 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) From and after the first day of April one thousand nine hundred and five, any woman who, not being certified under

Certification.

this Act, shall take or use the name or title of midwife (either alone or in combination with any other word or words), or any name, title, addition or description implying that she is certified under this Act or is a person specially qualified to practice midwifery or is recognised by law as a midwife, shall be liable on summary conviction to a fine not exceeding five pounds.

(2) From and after the first day of April one thousand nine hundred and ten, no woman shall, habitually and for gain, attend women in childbirth otherwise than under the direction of a qualified medical practitioner, unless she be certified under this Act; any woman so acting without being certified under this Act shall be liable, on summary conviction, to a fine not exceeding ten pounds; provided this section shall not apply to legally qualified medical practitioners, or to any one rendering assistance in a case of emergency.

(3) No woman shall be certified under this Act until she has complied with the rules and regulations to be laid down in pursuance of this Act.

(4) No woman certified under this Act shall employ an uncertified person as her substitute.

(5) The certificate under this Act shall not confer upon any woman any right or title to be registered under the Medical Acts or to assume any name, title or designation implying that she is by law recognised as a medical practitioner, or that she is authorised to grant any medical certificate, or any certificate of death or of still-birth, or to undertake the charge of cases of abnormality or disease in connection with parturition.

Provision for
existing
midwives.

2. Any woman who, within two years from the date of this Act coming into operation, claims to be certified under this Act, shall be so certified provided she holds a certificate in midwifery from the Royal College of Physicians of Ireland, or from the Obstetrical Society of London, or the Coombe Lying-in Hospital and Guinness's Dispensary, or the Rotunda Hospital for the Relief of the Poor Lying-in Women of Dublin, or such other certificate as may be approved by the Central Midwives Board, or produces evidence, satisfactory to the Board, that, at the passing of this Act, she had been for at least one year in bonâ fide practice as a midwife, and that she bears a good character.

Constitution
and duties of
the Central
Midwives
Board.

3. On the passing of this Act, the Lord President of the Council shall take steps to secure the formation of a Central Midwives Board, which shall consist of—

(1) Four registered medical practitioners, one to be appointed by the Royal College of Physicians of London, one by the Royal College of Surgeons of England, one by the Society of Apothecaries, and one by the Incorporated Midwives Institute; and

(2) Two persons (one of whom shall be a woman) to be appointed for terms of three years by the Lord President of the Council; and

- (3) One person to be appointed for a term of three years by the Association of County Councils, one person to be appointed for a term of three years by the Queen Victoria's Jubilee Institute for Nurses, and one person to be appointed for a term of three years by the Royal British Nurses Association.

After two years from the commencement of this Act, the members appointed under subsection (1) shall retire, but shall be eligible for re-appointment annually. Any vacancy occurring by resignation or death shall be filled up, in the case of a member appointed under subsections (1) and (3), by the body which appointed such person, and, in the case of a member appointed under subsection (2), by the Lord President of the Council; members appointed under subsections (2) and (3) shall, on the termination of the period for which they have been appointed, be eligible for re-appointment for a like period.

The duties and powers of the Board shall be as follows :—

I. To frame rules—

- (a) regulating their own proceedings ;
- (b) regulating the issue of certificates and the conditions of admission to the roll of midwives ;
- (c) regulating the course of training and the conduct of examinations and the remuneration of the examiners ;
- (d) regulating the admission to the roll of women already in practice as midwives at the passing of this Act ;
- (e) regulating, supervising and restricting within due limits the practice of midwives ;
- (f) deciding the conditions under which midwives may be suspended from practice ;
- (g) defining the particulars required to be given in any notice under section ten of this Act ;

II. To appoint examiners ;

III. To decide upon the places where, and the times when, examinations shall be held ;

IV. To publish annually a roll of midwives who have been duly certified under this Act ;

V. To decide upon the removal from the roll of the name of any midwife for disobeying the rules and regulations from time to time laid down under this Act by the Central Midwives Board, or for other misconduct, and also to decide upon the restoration to the roll of the name of any midwife so removed ;

VI. To issue and cancel certificates.

And generally to do any other act or duty which may be necessary for the due and proper carrying out of the provisions of this Act.

Rules framed under this section shall be valid only if approved by the Privy Council ; and the Privy Council, before approving any such rules, shall take into consideration any representations which the General Medical Council may make with respect thereto.

Appeal from
decision of
Midwives
Board.

4. Any woman thinking herself aggrieved by any decision of the Central Midwives Board removing her name from the roll of midwives may appeal therefrom to the High Court of Justice within three months after the notification of such decision to her; but no further appeal shall be allowed.

Fees and
expenses.

5. There shall be payable by every woman presenting herself for examination or certificate such fee as the Central Midwives Board may, with the approval of the Privy Council, from time to time determine, such fee not to exceed the sum of one guinea. All such fees paid by midwives in practice at the passing of this Act and by candidates for examination shall be paid to the Central Midwives Board. The said Board shall devote such fees to the payment of expenses connected with the examination and certificate, and to the general expenses of the Board. The Board shall, as soon as practicable after the thirty-first day of December in each year, publish a financial statement made up to that date and showing the receipts and expenditure, including liabilities of the Board, during the year, which statement shall be certified as correct by an accountant who shall be a member either of the Institute of Chartered Accountants or of the Incorporated Society of Accountants. The Board shall submit a copy of such statement to the Privy Council, and, if the statement shows any balance against the Board and such balance is approved by the Privy Council, the Board may apportion such balance between the councils of the several counties and county boroughs, in proportion to the number of midwives who have given notice during the year of their intention to practise in those areas respectively, and may recover from the councils the sum so apportioned.

Midwives
roll.

6. There shall be a roll of midwives containing—

- (1) The names of those midwives who have been certified under section two of this Act;
- (2) The names of all other midwives who have been certified under this Act.

The entry on the roll shall in every case indicate the conditions in virtue of which the certificate was granted.

Appointment
of secretary
and supple-
mental pro-
vision as to
certificate.

7. The Central Midwives Board shall, with the previous sanction of the Privy Council, appoint a secretary and such other officers as may be required, and every person so appointed shall be paid such salary as the Privy Council may approve, and shall be removable at the pleasure of the Board. The secretary shall be charged with the custody of the roll.

A copy of the roll of midwives, purporting to be printed by the authority of the Board or to be signed by the secretary to the Board, shall be evidence in all courts that the women therein specified are certified under this Act; and the absence of the name of any woman from such copy shall be evidence, until the contrary be made to appear, that such woman is not certified under this Act: Provided always that, in the case of any woman whose name does not appear in such copy, a certificate, under the hand of the secretary, of the entry of the name of such woman

on the roll shall be evidence that such woman is certified under this Act.

8. Every council of a county or county borough throughout England and Wales shall, on the commencement of this Act, be the local supervising authority over midwives within the area of the said county or county borough. It shall be the duty of the local supervising authority—

Local supervision of midwives.

- (1) To exercise general supervision over all midwives practising within their area in accordance with the rules to be laid down under this Act ;
- (2) To investigate charges of malpractice, negligence or misconduct on the part of any midwife practising within their area, and, should a *prima facie* case be established, to report the same to the Central Midwives Board ;
- (3) To suspend any midwife from practice, in accordance with the rules under this Act, if such suspension appears necessary in order to prevent the spread of infection ;
- (4) To report at once to the said Board the name of any midwife practising in their area convicted of an offence ;
- (5) During the month of January of each year, to supply the secretary of the Central Midwives Board with the names and addresses of all midwives who, during the preceding year, have notified their intention to practise within their area, and to keep a current copy of the roll of midwives, accessible at all reasonable times for public inspection ;
- (6) To report at once to the Central Midwives Board the death of any midwife or any change in the name or address of any midwife in their area, so that the necessary alteration may be made in the roll ;
- (7) To give due notice of the effect of the Act, so far as practicable, to persons at present using the title of midwife.

The local supervising authority may delegate, with or without any restrictions or conditions, as they may think fit, any powers or duties conferred or imposed upon them by or in pursuance of this Act to a committee appointed by them and consisting either wholly or partly of members of the council ; and the provisions of subsections one and two of section eighty-two of the Local Government Act, 1888, shall apply to every committee appointed under this section and to every council appointing the same ; and women shall be eligible to serve on any such committees.

9. A county council may delegate, with or without any restrictions or conditions, as they may think fit, any powers or duties conferred or imposed upon them by or in pursuance of this Act to any district council within the area of the county ; and the powers and duties so delegated may be exercised by a committee appointed by such district council and consisting either wholly or partly of members of the district council ; and women shall be eligible to serve on any such committee. Any expenses incurred by a district council in the execution of any powers or duties so delegated shall, to an amount not exceeding such sum as may be

Delegation of powers to district councils.

prescribed by the county council, be repaid to such district council as a debt by the county council; and any excess above the sum so prescribed shall be borne by the district council as part of their ordinary expenses.

The provisions of this section shall apply to the administrative county of London in like manner as if each metropolitan borough were a county district and the borough council were the district council of that district.

Notification of
practice.

10. Every woman certified under this Act shall, before holding herself out as a practising midwife or commencing to practise as a midwife in any area, give notice in writing of her intention so to do to the local supervising authority or to the body to whom, for the time being, the powers and duties of the local supervising authority shall have been delegated under this Act, and shall give a like notice in the month of January in every year thereafter during which she continues to practise in such area.

Such notice shall be given to the local supervising authority of the area within which such woman usually resides or carries on her practice, and the like notice shall be given to every other local supervising authority or delegated body within whose area such woman at any time practises or acts as a midwife, within forty-eight hours at the latest after she commences so to practise or act.

Every such notice shall contain such particulars as may be required by the rules under this Act to secure the identification of the person giving it; and, if any woman omits to give the said notices, or any of them, or knowingly or wilfully makes or causes or procures any other person to make any false statement in any such notice, she shall, on summary conviction, be liable to a fine not exceeding five pounds.

Penalty for
obtaining a
certificate by
false repre-
sentation.

11. Any woman who procures, or attempts to procure, a certificate under this Act by making or producing, or causing to be made or produced, any false and fraudulent declaration, certificate or representation, either in writing or otherwise, shall be guilty of a misdemeanour, and shall, on conviction thereof, be liable to be imprisoned, with or without hard labour, for any term not exceeding twelve months.

Penalty for
wilful falsifica-
tion of the
roll.

12. Any person wilfully making, or causing to be made, any falsification in any matter relating to the roll of midwives shall be guilty of a misdemeanour, and shall be liable to be imprisoned, with or without hard labour, for any term not exceeding twelve months.

Prosecution of
offences.

13. Any offences under this Act punishable on summary conviction may be prosecuted by the local supervising authority.

The expenses of any such prosecution shall be defrayed by the council of the county or county borough in which the prosecution takes place.

Appeal.

14. Where any woman deems herself aggrieved by any determination of any court of summary jurisdiction under this Act such woman may appeal therefrom to the court of quarter sessions.

15. Any expenses under this Act payable by the council of a county or county borough shall be defrayed out of the county fund or out of the borough fund or borough rate, as the case may be. Expenses of local supervising authority.

16. Nothing in this Act respecting midwives shall apply to legally qualified medical practitioners. Act not to apply to medical practitioners.

17. This Act shall not extend to Scotland or Ireland.

The General Medical Council shall act by the English Branch Council, which, for all purposes of this Act, shall occupy the place of the General Medical Council. Extent of Act and action by English Branch Council.

18. In this Act—

The term "midwife" means a woman who is certified under this Act, unless the context otherwise requires ;

"Central Midwives Board" means the Board constituted under this Act for the purpose of carrying out the provisions of this Act. Definitions.

19. This Act may be cited as the Midwives Act, 1902. It shall, except as otherwise provided by this Act, come into operation on the first day of April one thousand nine hundred and three. Short title and commencement.

CHAPTER 18.

An Act to amend the Law relating to issue of Licences for the Sale of Intoxicating Liquors in Ireland.

[31st July 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act shall extend to Ireland only, and may be cited as the Licensing (Ireland) Act, 1902. Extent and title of Act.

2. From and after the passing of this Act, no licence shall be granted for the sale of intoxicating liquors, whether for consumption on or off the premises, except— Provision against the issue of new licences.

- (1) For premises which are now licensed or which were licensed at any time since the first day of January one thousand nine hundred and two ; or
- (2) For an hotel, which expression shall refer to a house containing at least ten apartments set apart and used exclusively for the sleeping accommodation of travellers, and having no public bar for the sale of intoxicating liquors ; or
- (3) For a railway refreshment room.

3. Where, by reason of the expiration of a lease, a licence for the sale of intoxicating liquors for consumption on the premises comprised in the lease is extinguished or surrendered, the licensing authority may, notwithstanding anything in this Act, grant a licence for suitable premises in the immediate vicinity of the premises to which the licence so extinguished or surrendered was attached. Expiring leases.